

With respect to the specific diagnostic tests to be permitted, “the plain meaning of [Code of Civil Procedure] section 2032.320 is that the trial court must ‘specify the ... diagnostic tests and procedures’ of the ... examination by naming the tests and procedures *to be performed*.” *Carpenter v. Superior Court* (2006) 141 Cal.App.4th 249, 261–262. Accordingly, the order granting the examination shall specify the tests and procedures *to be performed*.

As for the audio recording of the examination, “since [Code of Civil Procedure] section 2032.530, subdivision (a) grants the examinee the right to record a mental examination by audio technology, it implies the examinee may retain a copy of the audio recording.” *Randy's Trucking, Inc.*, 91 Cal.App.5th at 837. “Nothing in the applicable statute [related to audiotaping of examinations] suggests that the right of the examiner or examinee is limited to recording only selected parts of the examination. Further, recording only the examinee's responses would defeat the main purposes of the audiotaping” *Golfland Entertainment Centers, Inc. v. Superior Court* (2003) 108 Cal.App.4th 739, 750. Accordingly, Defendants shall provide Plaintiff with a complete audio recording of the entire examination, including both the interview and testing portions.

Finally, production of the raw testing materials, audio recordings, and any reports of examination required under Code of Civil Procedure section 2032.610 shall be made directly to Plaintiff's counsel within thirty (30) days of the examination or fifteen (15) days before trial, whichever is earlier, subject to the protective order.

3. CU0002867 Jason Christ vs. Elizabeth Aroyan, et al.

Plaintiff Jason Christ's motion for preliminary injunction as against Defendants Elizabeth Aroyan and Richard Milligan (aka "F'kir Eldercake") is denied.

“A preliminary injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor.” Code Civ. Proc. § 527(a). “The purpose of a preliminary injunction is to preserve the status quo pending final resolution upon a trial.” *Grothe v. Cortlandt Corp.* (1992) 11 Cal.App.4th 1313, 1316. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. *See, e.g., ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150.

“The decision to grant a preliminary injunction rests in the sound discretion of the trial court [B]efore the trial court can exercise its discretion the applicant must make a prima facie showing of entitlement to injunctive relief. *The applicant must demonstrate a real threat of immediate and irreparable injury.*” *Triple A Machine Shop, Inc. v. State of Cal.* (1989) 213 Cal.App.3d 131, 138 (italics added). Before a trial court may issue a nonstatutory injunction as a provisional remedy, it must appear that monetary relief would not afford adequate relief or that it would be extremely difficult to ascertain the amount of damages. Code Civ. Proc. § 526, subs. (a)(4) & (a)(5); *Thayer Plymouth Center, Inc. v. Chrysler Motors Corp.* (1967) 255 Cal.App.2d 300, 306. “[A]n injunction is an unusual or extraordinary equitable remedy which will not be granted if the remedy at law (usually damages) will adequately compensate the injured plaintiff,” and the party seeking injunctive relief bears the burden to prove its absence. *Department of Fish & Game v.*

Anderson-Cottonwood Irrigation Dist. (1992) 8 Cal.App.4th 1554, 1564-1565. “Put another way, if the legal remedy of compensatory damages is adequate to do complete justice between the parties, ‘a proper exercise of equitable jurisdiction will not give equitable relief.’ ” *ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd.* (2022) 82 Cal.App.5th 992, 1000-1001 (citation omitted).

Such is the case here. Plaintiff has made no persuasive showing that he faces a threat of immediate and irreparable injury in the absence of injunctive relief. Moreover, he has made no persuasive showing that monetary relief would not afford adequate relief. Should Plaintiff prevail at trial, the trier of fact can readily ascertain monetary damages to compensate Plaintiff for his lost opportunities, if any, to participate in Dance Church events.

4. CU0002887 Jason Christ vs. Chris Anderson

Plaintiff Jason Christ’s motion for a preliminary injunction against Chris Anderson is denied without prejudice.

Judge Hardcastle issued an order (presented by Plaintiff) which stated that “Plaintiff” could serve, among other things, the summons and complaint, by various alternative means including e-mail. *See* 7/15/26 Order. Plaintiff *himself* served the complaint (as opposed to a process server or some other adult selected by Plaintiff). *See* 7/16/26 Proof of Service. Such service is legally insufficient.

[Code of Civil] Procedure Section 414.10, entitled “Person permitted to serve,” expressly provides who may serve the moving pleadings to a case: “A summons may be served by *any person who is at least 18 years of age and not a party to the action.*” § 414.10, italics added.

... The intent of a statute prohibiting personal service of process by parties is to discourage fraudulent service by persons with an adversarial interest in a legal action. *Caldwell v. Coppola* (1990) 219 Cal.App.3d 859, 864 (*Caldwell*). Accordingly, “the prohibition on service by the opposing party is strictly enforced.” *Id.* at p. 865; *see Sullivan v. Sullivan* (1967) 256 Cal.App.2d 301, 304 (*Sullivan*) [motion to vacate a default and judgment was *proper* where declarations filed by the parties supported a finding that the summons and complaint were served on defendant by plaintiff himself]. Thus, “[w]hen a party has served notice on the opposing party, the court lacks personal jurisdiction over the defendant.” *Caldwell*, at p. 865.

Braugh v. Dow (2023) 93 Cal.App.5th 76, 88–89 (parentheses and parallel citations omitted, italics added); *see id.* at 89-90 (defendant was “under no duty to act upon a defectively served summons,” even if he has “actual notice of the commencement of the action”).

In addition, there is no evidence that Plaintiff served any summons on Plaintiff.

This Court lacks jurisdiction over Anderson. Accordingly, the motion for a preliminary injunction is denied without prejudice.